



SELECTBOARD
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

Minutes of January 21, 2020

The meeting convened at 7:00 p.m.

Present from Selectboard were Phil Dowling, Maureen Dempsey, and Teri Anderson. Others present were Bill Jablonski, David Blakesley (Highway Superintendent), Bill Jablonski (highway), Scott Tirrell (highway), Dave Antosz (Fire Chief), Anne Marie Knox (Collector), and Barbara Pellisier. Minutes were taken by Cheryl Provost.

Warrants were reviewed, approved by vote, and signed for:
Payroll: \$81,690.82
Vendor: \$110,325.83
Presidential Primaries

Minutes of January 6, 2020 were reviewed and approved by vote of 3-yay, 0-nay

- A review of the Westhampton Highway Foreman job description was held with Scott Tirrell. Scott explained he's been with the department since 2011. He has worked on his own under the direction of Bill (Jablonski) when Bill has stepped up to complete or assist with tasks of the superintendent as needed. There was discussion of the percent of time the foreman takes direction from the superintendent. Phil asked Scott if he's interested in the foreman position. Scott replied yes, he works well with Bill on the highway department and fire department. He has taken direction from Bill and completed tasks assigned to him. Scott provided a recent example where he was sent by Bill to oversee work with another crew member. Scott has taken the lead in the past, he believes he can read the crew and knows the town and work. Scott confirmed he holds all the licenses required for the job. Scott was asked if there has been times of disagreement with the public or other workers. Scott replied yes, and explained how he manages those situations. Teri made point that the position will be as acting foreman during the probation period of Bill Jablonski as superintendent and then they will post the position internally. Scott described his strong points and what he needs to work on. Discussion ensued regarding records of town roads, locations of the roads drainage systems, culverts, and other public way information needed for reference by the superintendent and foreman. David has been organizing the records which are currently all hard copies. Discussion with Scott concluded. Phil motioned to hire Scott Tirrell as Acting Foreman of the Westhampton Highway Department effective February 14, 2020 for a period of 6 months. Second by Maureen. So voted 3-yay, 0-nay.
- Department Updates
Highway Dept., Superintendent David Blakesley reported:
-Governor Baker announced the legislature approved his FY20 supplemental budget including additional Chapter 90 funds. Westhampton was approved for an additional supplemental amount of \$18,586.00 for a total FY20 Chapter 90 funds in the amount of \$204,445.00.

- keeping up with storms
- salt deliveries are on time now
- snow removal budget is about 2/3 gone
- 2019 was the third and final year for the post-closure land fill monitoring contract. He and Cheryl have reviewed the previous procurement of services and are prepared to seek written quotes the same as last time. The town had been using Stantec for several years without seeking quotes and went to quotes for first time three years ago. There were good results from the search so want to do it again. Last time the contract was signed for one year with option to extend for two more, and did. Teri asked if the inspections are required in perpetuity. David replied after a certain amount of time a request can be sent to the Dept. of Environmental Protection to reduce the amount of inspections. An approval is based on previous results.
- The Materials Recovery Facility contract was supposed to be signed by the end of January but the Dept. of Environmental Protection wants wording in contract to include "subject to approval of appropriations" and they're working out the details. David recommends going back to dual stream. If the town continues with single stream the cost will be \$140-\$150 per ton vs the cost of dual stream at \$93.50 per ton. It will be about \$10k added to the budget for dual stream. There is nearly \$20k available in the Recycling Dividends Program funds that can be used to purchase a roll-off box. The second compactor can be used for paper.
- fuel tanks should be available by second week of February
- equipment capital request was submitted and reviewed. Four new items were added; a generator (current one is failing), brush mower (shared program is done), tow behind compressor (current one came from surplus and is old), asphalt roller.
- David and Bill will be at the HRMC meeting February 3 and will not be at Selectboard meeting.

Town Property & Energy Assessment, David Blakesley reported:

Getting roof replacement quotes for the Town Hall. Next meeting is mid-February when the roof quotes will be reviewed and a recommendation for Selectboard will be made.

Building Commissioner/Zoning Enforcement Officer, Tom Quinlan reported:

Have not been updated on status of 0 Main Road ("Jaws") since end of November. While in the area look to see if anyone there and haven't seen anyone. Will send updates to Cheryl. Presented FY21 budget request to Finance Committee. Seeking a salary increase. Working 15 hours on average, comes to under \$25.00 hourly at current salary. For certified it should be \$29.50. Submitted proposal for e-permitting in the amount of \$4,000.00 annually. It will reduce hours worked and make permitting more accessible.

Tax Collector, Anne Marie Knox reported:

As policy for tax takings she goes back 3 years in unpaid taxes, and does not want to go any longer than that. After demands for payment have been ignored a Notice of Takings is published in the Country Journal, posted at town hall, library, and town website. Mass General law states they have up to 6 months to pay off. Payment plans can be arranged. If not paid, the next step is to file in Land Court. Phil asked where the Assessors are involved. Anne Marie replied they're not involved at all, they commit the taxes to the Collector and that's where it ends for them. There are Mass General Laws that Collectors and Treasurers follow. The tax title accounts are published in the Annual Town Report; it's all public. Teri asked how long it is from taking to when the town owns. Anne Marie replied about one year. The attorney knows when things are moving in court and keeps Treasurer updated. After the property is decreed to the town the owner can petition to the town to ask if they can pay and come back. Maureen asked if land owners know of this option and Teri added to ask if it is in the decree. Anne Marie did not recall

if it is and added that there appears to be a question about the communication to the Selectboard. Maureen replied yes, that the board just didn't know until Patty (Treasurer) reported the property was decreed to the town. Anne Marie reported there's another parcel coming up that also has residents and she can send a copy of that taking to the board. Teri asked if there is any material available to provide assistance. Anne Marie is not aware of any and noted that her job is collecting taxes. Duly noted. The board asked for copies of takings when they come and thanked Anne Marie. She agreed and discussion ended.

EMS/Fire Dept., Fire Chief Dave Antosz reported:

Sent draft ambulance agreement to Easthampton, their Fire Chief, Union, Mayor are in favor of it. Need to get Mark Gould (EMS Coordinator) and Easthampton EMS Coordinator together to work out their side of it. The current ambulance agreement with Pioneer is up in June. The town ambulance license is up in March and it's not feasible to continue its operation. There is no manpower. The state inspector provided a third-party opinion and reported the last inspection of the ambulance was marginal, and stated that keeping an ambulance is expensive. Running a service is about \$450,000.00 a year. Westhampton does not have the runs to justify that. Easthampton would become the primary and Pioneer would remain on the run card. The cost to sign on with Easthampton will be \$25,000.00. Dave is proposing to pay \$5,000.00 of that out of the ambulance receipts reserved fund to pay the amount down in FY21. Dave is looking into how the account was set up. This year the EMS budget is about \$17,000.00. If \$5,000.00 is used to pay down the service the proposed EMS budget for FY21 will be \$29,000.00. It has cost approximately \$9,000.00 to maintain the ambulance in the garage.

- To save some money the highway department will resume providing vehicle maintenance.

- New backup cameras are needed for the vehicles. The tanker truck is good because it came with one. The other cameras are Wifi and with all the metal the picture is blue. Cameras are cheaper than they used to be. Will plan to purchase one or two a year until all are changed.

- Hydro-testing tanks on truck; required every 5 years and this is 5.

- SCBA are maintained every year. Replacement bottles must be Scott brand to maintain warranty.

- Ladders were tested

- Hoses will be tested in the spring

Teri asked about the Hazard Mitigation Plan. Dave replied he's not familiar with it, he has a copy and has begun going through it. Barbara Pellisier was allowed to speak. She reported of a municipal vulnerability plan grant for assistance with impacts on climate change. Teri added that the grant is through Pioneer Valley Planning Commission. The grant must be spent out quickly, in six months.

Capital Improvement Planning Committee needs members. Bill Jablonski submitted interest.

Phil motioned to appoint Bill Jablonski to the Capital Planning Improvement Committee.

Second by Teri. So voted 3-yay, 0-nay. Tad Weiss was nominated to represent the Finance

Committee. Phil motioned to appoint Tad Weiss to the Capital Improvement Planning

Committee. Second by Teri. So voted 3-yay, 0-nay. The committee will meet on January 27 at 7pm.

Public Safety Complex Building Committee will meet January 29.

Pat Miller visited and was allowed to speak. She asked if there's any funding for the stage. The variety show is scheduled for April and something needs to be done for the set. There was

discussion of curtains and options where to get them. Pat would like to see more community involvement.

Town Clerk, Cheryl Provost reported:

- The warrant for the Presidential Primaries was submitted and reviewed. Voted to approve the warrant as presented.
- will submit an increase to the FY21 Town Clerk Expenses to add a stipend for state elections. The polls are open 13 hours and additional hours are spent in preparation and reporting.
- The Annual Street Listing Forms are going out this week

- Hazard Mitigation Grant was revisited. It was discussed that the Selectboard carries the responsibility for events that could happen. We could do more to prepare. It's a real issue to realize what happens when a hazard happens. Implementing plan we have makes sense before seeking funds.
- FY21 Budget proposals were reviewed:

Town Offices proposed for \$29,873; an increase of \$3,408.00 over the FY20 budget. Increases from building maintenance, internet & phone, fuel oil, and an added line for service of the elevator lift.

Selectboard Expenses proposed level at \$5,800.

Counsel Fees proposed level at \$25,000. Although recent invoice amounts have been down there are still two open cases.

Memorial Day proposed level at \$200.

Reserve Fund proposed \$10,000; a decrease of \$10,000 from FY20. The Reserve Fund is for small unforeseen expenses, not poor budgeting plans. Large expenses can be approved for a transfer from other funds at a town meeting.

250th Anniversary Fund (2028). Proposed \$0.0. A plan should be proposed to understand what the funding is for. To consider forming a committee in the next year or two.

Copies of Zoning Bylaws. Proposed \$0.0. Final version is not expected to be completed soon. Initial copies may be produced in house if needed.

The IT Support proposal will be reviewed at the next meeting.

Phil motioned to propose FY21 Town Offices budget at \$29,873. Second by Maureen. So voted 3-yay, 0-nay.

Phil motioned to propose FY21 Selectboard Expenses budget at \$5,800. Second by Maureen. So voted 3-yay, 0-nay.

Phil motioned to propose FY21 Counsel Fees budget at \$25,000. Second by Maureen. So voted 3-yay, 0-nay.

Phil motioned to propose FY21 Memorial Day budget at \$200. Second by Maureen. So voted 3-yay, 0-nay.

Phil motioned to propose FY21 Reserve Fund budget at \$10,000. Second by Maureen. So voted 3-yay, 0-nay.

Phil motioned to propose FY21 250th Anniversary Fund budget at \$0. Second by Maureen. So voted 3-yay, 0-nay.

Phil motioned to propose FY21 Copies of Zoning Bylaws budget at \$0. Second by Maureen. So voted 3-yay, 0-nay.

- Teri made recommendation the board develop a work plan for the year to plan and prepare in a timely manner for annual business and specific projects. To begin the process a list of the items can be used to create a timeline of events. Some items include new hires and licenses. Phil and Maureen agreed with the development of a plan.
- The Selectboard voted by roll call, 3-yay, 0-nay, to enter into Executive Session at 9:50 p.m., pursuant to G.L. c. 30A, section 21(a)(3), as the Chair declared that discussion in a public meeting may have detrimental effect on the town's potential litigating position with respect to enforcement action for property at 225 Northwest Road; (7) review and potential approval of minutes of executive session January 6, 2020. Open session will resume after executive session.
- Adjourned Executive Session and returned to Open Session at 10:10 p.m.
- Correspondence:
 - Proclamation of School Choice Week, no action
 - Hampshire district towns meeting of Select Boards is being organized to discuss the school budget, impacts on local budgets, shared services and any points of interest. Maureen and Teri will try to attend when it is scheduled.
 - Westhampton FY20 Chapter 90 Funds approval in the total amount of \$204,445.00
 - Mass. Municipal Assoc. Annual Meeting January 24 & 26 notices and invitations from Mass. Interlocal Insurance Assoc., Mass Selectmen's Assoc., KPLaw, Small Town Administrators Assoc.
 - Easthampton Savings Bank Notice of Foreclosure of property known as 112 King's Highway as copied to Selectboard
 - Comcast Northeast Operations Center provided directions in the event the town experiences network-related issues with any Comcast services or infrastructure. Copies provided to Highway Dept., Fire Dept., Police Dept.
- Next meeting: 7:00 p.m. February 3, 2020 and propose budget to Finance Committee February 4.
- Documents submitted:
 - Agreement Between the Town of Westhampton and the Highway Crew 2019-2022
 - Highway Foreman job description
 - Building Department FY21 budget proposal
 - post closure landfill monitoring contract and request for quotes from 2017
 - FY21 budget proposals

Meeting adjourned at 10:10p.m.

Approve:

Philip Dowling, Chair

Maureen Dempsey
Maureen Dempsey

Teri Anderson
Teri Anderson